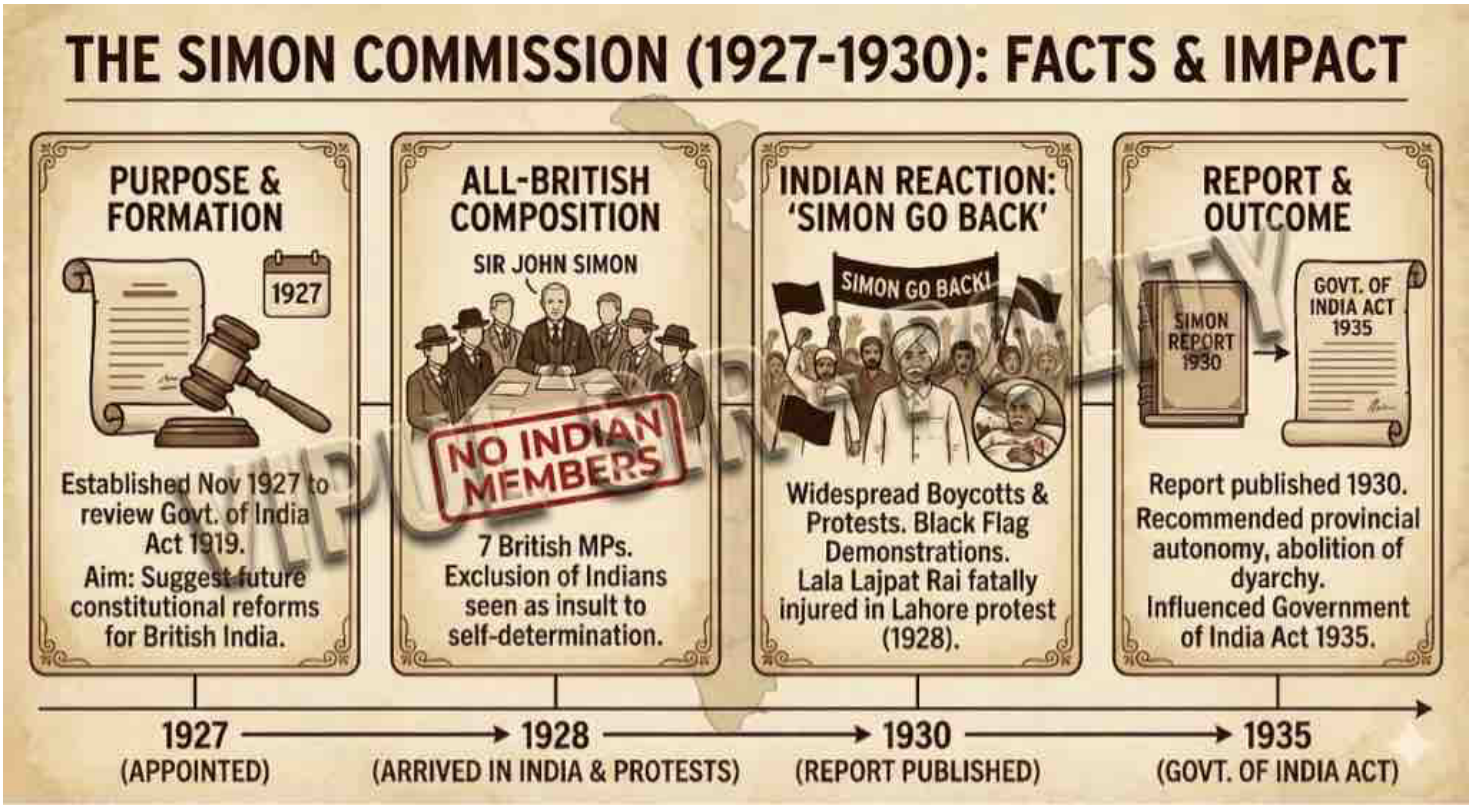
CONSTITUENT ASSEMBLY

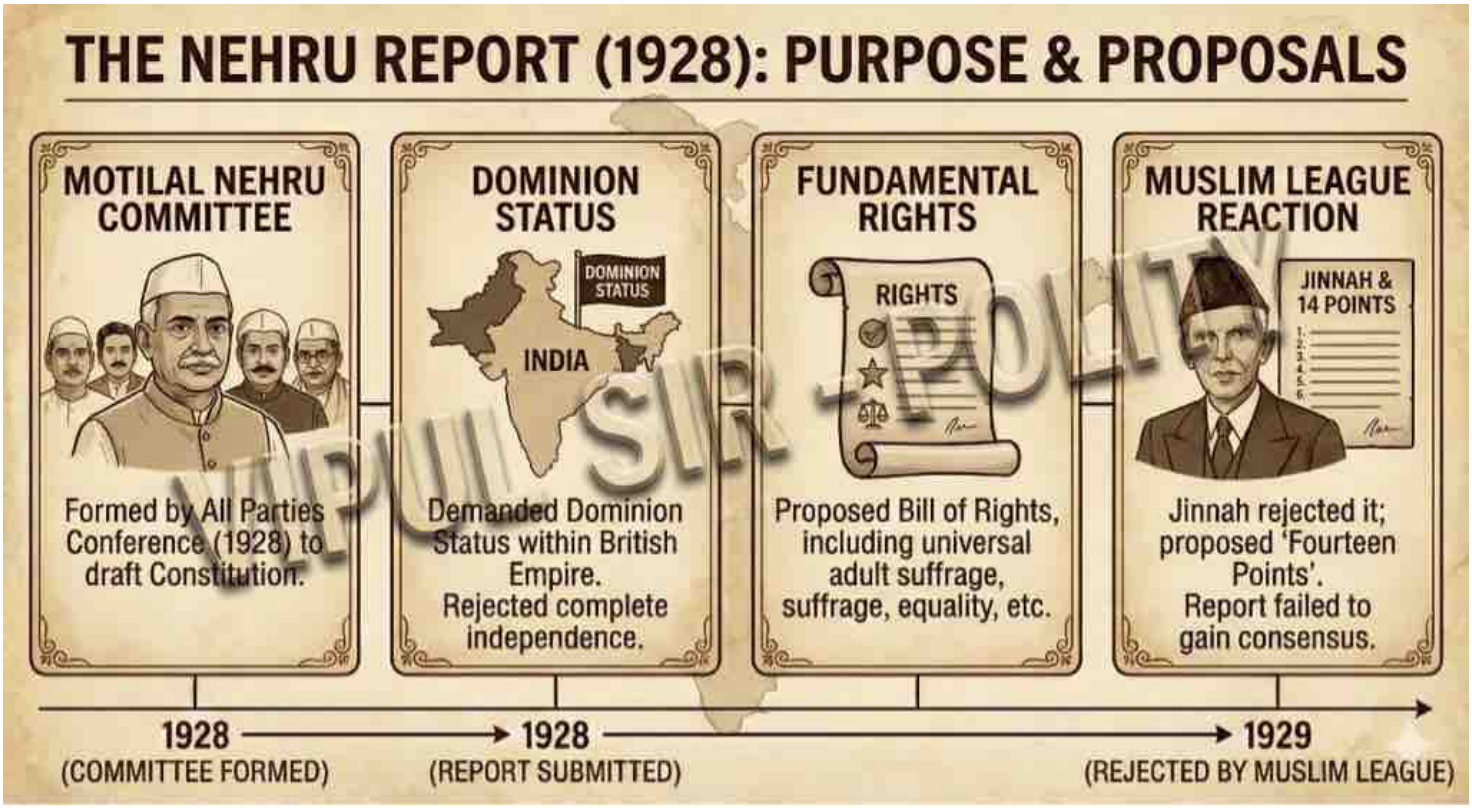
By: Vipul Sir(Polity)

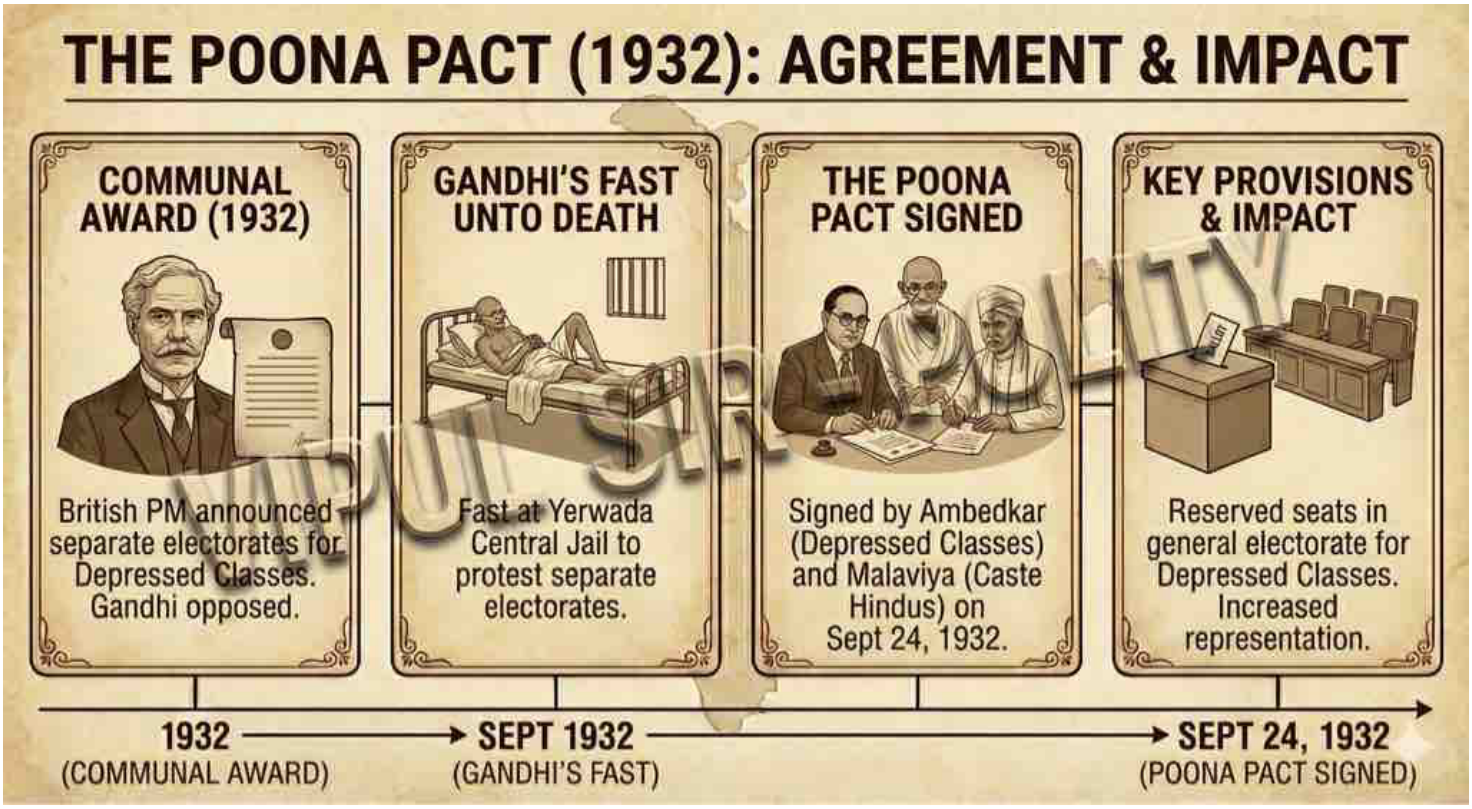
Making of the Constituent Assembly:

Early demand

- **1895**: The demand for the country to create its own constitution was first raised by **Bal Gangadhar Tilak** in his **Swaraj Bill**.
- **1928**: **Simon commission** challenged Indians to frame their own constitution, the **Nehru Committee Report of 1928** proposed accepting this challenge.
- **1934**: Idea of a **Constituent Assembly** first put forward by **M.N. Roy** (Manabendra Nath Roy) in **white paper resolution** at Swaraj Party convention 03 May 1934.
- **1935:Indian National Congress (INC)** officially demanded a Constituent Assembly to frame the Constitution.
- **1938:C Rajgopalchari** spoke about **Universal Adult Franchise** for the purpose of constitution making in India at Congress's **Tripuri session**.
- **1940 (August Offer)**: British accepted **in principle** that Indians would frame their own Constitution after WWII (no concrete assembly yet).
- **1942 (Cripps Mission)**: Proposed an elected Constituent Assembly after WWII; plan failed.
- **1946 (Cabinet Mission Plan)**: Final and actual basis for creating the Constituent Assembly.







August Offer (1940)

- 8 August 1940: **August Offer** by **Viceroy Lord Linlithgow**
  - Promised **post-war** constitutional advance and that **Indians would be associated** more with governance.
  - Assured that **minorities' consent** would be necessary for any future constitution (a "minority veto" understanding).

- Aftermath:
  - **Individual Satyagraha** began **17 October 1940**
    - **1st satyagrahi: Acharya Vinoba Bhave**
    - **2nd: Jawaharlal Nehru**

Cripps Mission (1942)

- **Cripps Mission (March–April 1942)** led by **Sir Stafford Cripps**
  - **Arrived: 22 March 1942**
  - **Left (failure): 12 April 1942**
- Core proposals:
  - **Dominion Status** after WWII.
  - A **Constituent Assembly** to frame the constitution:
    - **Elected by Provincial Legislative Assemblies**(indirect election),
    - **Princely States** to send representatives **nominated by rulers**.
  - **Provinces allowed to opt out** of the new Union and form a separate arrangement.
  - **Defence** to remain under British control during the war.
- Consequence:
  - Failure contributed to the launch of **Quit India Movement: 8 August 1942**.

Cabinet Mission Plan → actual Constituent Assembly

- **Cabinet Mission arrived: 24 March 1946**
- Members:
  - **Lord Pethick-Lawrence, Sir Stafford Cripps, A.V. Alexander**
- **Cabinet Mission Plan announced: 16 May 1946**
  - Gave the **final workable scheme** for setting up the Constituent Assembly.

Composition & election

- **Total proposed strength: 389**
  - **292**: British Indian Provinces
  - **93**: Princely States
  - **4**: Chief Commissioner's Provinces (**Delhi, Ajmer-Merwara, Coorg, British Baluchistan**)
- **Election method (Provinces): Indirect election** by Provincial Legislative Assemblies using **PR–Single Transferable Vote (STV)**.
- Provincial seat distribution (292):
  - **General: 213, Muslims: 78, Sikhs: 1**

First sitting and key office-bearers

- **First meeting: 9 December 1946**
  - **Temporary President: Dr. Sachchidananda Sinha**
- **11 December 1946:**
  - **President: Dr. Rajendra Prasad**
  - **Vice-Presidents: H.C. Mukherjee, V.T. Krishnamachari**

- Constitutional Adviser: B.N. Rau

Objectives Resolution → base of Preamble

- 13 December 1946: **Jawaharlal Nehru** moved the **Objectives Resolution**
- 22 January 1947: Adopted by the Assembly

Partition & sovereignty

- 3 June 1947: **Mountbatten Plan**
- 18 July 1947: **Indian Independence Act, 1947**
- 15 August 1947: Constituent Assembly became a **sovereign body**
- Strength after Partition: **299 members** (**229 Provinces + 70 Princely States**)

Drafting, adoption, enforcement

- 29 August 1947: **Drafting Committee** set up (Chairman **B.R. Ambedkar**)
- 21 February 1948: **Draft Constitution** published
- 15 November 1948: Clause-by-clause consideration started
- 26 November 1949: Constitution **adopted**
- 24 January 1950: Constitution **signed**
- 26 January 1950: Constitution **came into force**

The Constitution was accepted on November 26, so why was it implemented on January 26?

- The Drafting Committee of the Constituent Assembly **accepted** the Constitution on **November 26, 1949**.
- Some of its articles came into effect on the same day, but the Constitution was fully implemented from **January 26, 1950**. We celebrate **Republic Day** on this date every year.
- **January 26, 1930,** was the day Congress celebrated its first **Independence Day (PurnaSwaraj Day)**. Therefore, the Constitution was fully implemented from **January 26, 1950,** to mark the importance of this date.

Lahore + J.L. Nehru

VIPUL SIR - POLITY

Working statistics

- 11 sessions
- 165 sitting days
- 2 years, 11 months, 18 days
- 15 women members

Sl. No.	Country	No. of Articles	Working Period	Time Taken
1	U.S.A.	7	May 25, 1787 to September 17, 1787	Less than 4 months
2	Canada	147	October 10, 1864 to March 1867	About 2 years and 6 mo
3	Australia	128	March 1891 to July 9, 1900	About 9 years
4	South Africa	153	October 1908 to September 20, 1909	1 year

(Vipul Sir - Polity)

Committees of the Constituent Assembly

Major Committees

Committee	Date constituted	Chairman	Core work / output
Rules of Procedure Committee	**11 Dec 1946**	**Dr. Rajendra Prasad**	Framed rules for conducting Assembly business
Advisory Committee on Fundamental Rights, Minorities & Tribal/Excluded Areas	**24 Jan 1947**	**Sardar Vallabhbhai Patel**	Recommended on **Fundamental Rights**, minority safeguards, tribal/excluded areas
Union Powers Committee	**29 Apr 1947**	**Jawaharlal Nehru**	Recommended distribution of powers/subjects for the Union
Union Constitution Committee	**29 Apr 1947**	**Jawaharlal Nehru**	Framework of Union executive/ legislature etc.
Provincial Constitution Committee	**29 Apr 1947**	**Sardar Vallabhbhai Patel**	Provincial structure; centre–province administrative

			design
States Committee	**April 1947**(commonly cited)	**Jawaharlal Nehru**	Constitutional relationship of **princely states** with the Union
Steering Committee	**29 Aug 1947**	**Dr. Rajendra Prasad**	Managed Assembly business; coordinated work of committees
Drafting Committee	**29 Aug 1947**	**Dr. B.R. Ambedkar**	Prepared the **Draft Constitution** based on committee reports

Important "Minorities" Committees / Sub-committees

These worked **under Patel's Advisory Committee (24 Jan 1947)** and shaped **FRs + minority safeguards + special protections**.

Sub-committee (under Advisory Committee)	Chairman	What it dealt with
Minorities Sub-Committee	**H.C. Mookherjee**	Minority safeguards; minority rights framework
Fundamental Rights Sub-Committee	**J.B. Kripalani**	Drafting recommendations on Fundamental Rights
North-East Frontier Tribal & Excluded	**Gopinath Bordoloi**	Special provisions for tribal areas in Assam/

Areas Sub-Committee		NE (basis for later special arrangements)
Excluded & Partially Excluded Areas (other than NE) Sub-Committee	**A.V. Thakkar**	Administration/ safeguards for excluded/partially excluded tribal areas

Drafting Committee: members

Formed: 29 August 1947

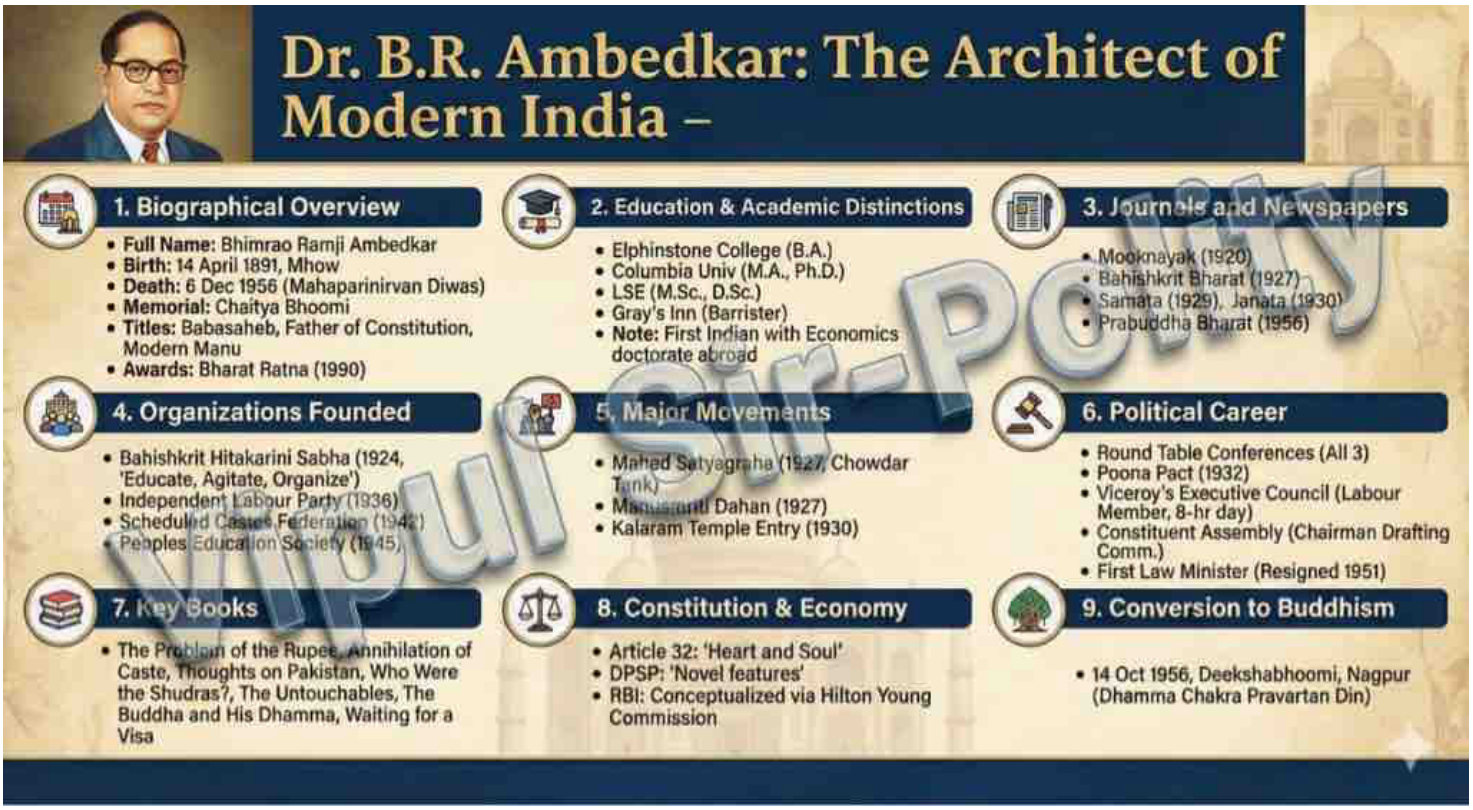
Chairman: Dr. B.R. Ambedkar

Members (original):

1. **Dr. B.R. Ambedkar** (Chairman)
2. **N. Gopalaswami Ayyangar**
3. **Alladi Krishnaswami Ayyar**
4. **K.M. Munshi**
5. **Mohammad Saadulla**
6. **B.L. Mitter** *(later replaced by **N. Madhava Rau**)*
7. **D.P. Khaitan** *(later replaced by **T.T. Krishnamachari**)*

(Secretary often noted in standard references: **S.N. Mukherjee**)

- The elephant was adopted as the symbol (seal) of the Constituent Assembly.
- Sir B.N. Rau was appointed as the constitutional advisor (Legal Advisor) to the Constituent Assembly.
- H.V.R. Iyengar was the Secretary to the Constituent Assembly.
- S.N. Mukherjee was the chief draftsman of the constitution in the Constituent Assembly.



Advisory Committee (Patel) — key sub-committees

Under **Sardar Patel's Advisory Committee (24 Jan 1947)**, important sub-committees included:

- **Fundamental Rights Sub-Committee**
- **Minorities Sub-Committee**
- **Tribal & Excluded Areas Sub-Committee(s)**

First Union Cabinet of Independent India (15 August 1947) – PM Jawaharlal Nehru (15 members)

- **Jawaharlal Nehru** — Prime Minister; **External Affairs & Commonwealth Relations**
- **Sardar Vallabhbhai Patel** — Deputy PM; **Home, States, Information & Broadcasting**
- **Dr. R.K. Shanmukham Chetty — Finance**
- **Dr. B.R. Ambedkar — Law**
- **Maulana Abul Kalam Azad — Education**
- **Sardar Baldev Singh — Defence**
- **Jagjivan Ram — Labour**
- **Rajkumari Amrit Kaur — Health**
- **John Matthai — Railways & Transport**
- **Dr. Syama Prasad Mookerjee — Industry & Supply**
- **Rafi Ahmed Kidwai — Communications**
- **N.V. Gadgil — Works, Mines & Power**
- **C.H. Bhabha — Commerce**
- **K.C. Neogy — Relief & Rehabilitation**
- **N. Gopalaswami Ayyangar — Minister without Portfolio**

Adoption of National Flag, Anthem, Song

National Flag

- **Adopted by Constituent Assembly: 22 July 1947**
- Adopted as the **Flag of Independent India** (tricolour with Ashoka Chakra).

National Anthem & National Song

- **Adopted by Constituent Assembly: 24 January 1950**
  - **National Anthem: "Jana Gana Mana"**
  - **National Song: "Vande Mataram"** (from Bankimchandra Chattopadhyay's *Anandamath*)

Other key CA actions on **24 January 1950** (last session):

- **Dr. Rajendra Prasad elected** as the **first President of India**.

State Emblem

- **State Emblem of India adopted: 26 January 1950**
  - Based on the **Lion Capital of Ashoka** (Sarnath)
  - Motto: **"Satyameva Jayate"** (from the *Mundaka Upanishad*)

Handwritten Constitution" + Calligraphy/Artwork

- The **original Constitution of India** was **handwritten (calligraphed) — not printed/typed** in Italic style
- **Calligraphy (English version): Prem Behari Narain Raizada**
- **Calligraphy (Hindi version): Vasant Krishan Vaidya**
- **Artwork/Illustrations & decoration**: done under **Nandalal Bose** and his team from **Santiniketan**.
  - A frequently cited artist from the team: **Beohar Rammanohar Sinha** (noted for decorative work)

Other presentation facts commonly used in answers:

- The original Constitution was prepared in **two official calligraphed copies: English and Hindi**.
- **Signed** on **24 January 1950** (by **284 members**).
- **Adopted: 26 November 1949**; **came into force: 26 January 1950**.
- At adoption (26 Nov 1949), the Constitution had **395 Articles**, **22 Parts**, **8 Schedules**. (Today it is much expanded due to amendments.)

Borrowed Features of Indian Constitution

British Constitution

- Parliamentary form of Government
- Bicameralism and Cabinet system
- Parliamentory Privileges
- Rule of Law
- Lawmaking procedure
- **Single Citizenship**
- **Doctrine of pleasure**

Canadian Constitution

- Federal System with strong central authority
- **Residual powers in the Centre**
- Appointment of state governor by Centre

Australian Constitution

- Concurrent list
- Joint sitting of Parliament
- Freedom of Trade & Service within country

Gavt. of India Act, 1935

- Office of the **Governor**
- Federal Scheme
- Administrative Details
- Judiciary
- Public Service Commissions
- Emergency Provisions

Soviet Constitution

- Five-Year Plans
- Fundamental Duties

American Constitution

- Fundamental Rights
- Post of Vice-President
- Impeachment of President
- Judicial Review
- Removal of SC and HC Judges

Irish Constitution

- Directive Principles
- **Election of the President of India**
- Nomination of members to RS

Weimar Constitution

- Suspension of the Fundamental Rights during Emergency

South African Constitution

- Amendment of Constitution

Japan Constitution

- **Procedure Established by Law**

France Constitution

- Concept of Republic
- Principles of Liberty, Equality and Fraternity

PARTS IN THE INDIAN CONSTITUTION

Part I
(Article 1 - 4)
The Union and Its Territory

Part II
(Article 5 - 11)
Citizenship

Part III
(Article 12 - 35)
Fundamental Rights

Part IV
(Article 36 - 51)
Directive Principles of State Policy

Part IV-A
(Article 51-A)
Fundamental Duties

Part V
(Article 52 - 151)
The Union (Executive, Parliament, President, Legislative Powers of the President, Union Judiciary, CAG)

Part VI
(Article 152 - 237)
The State (Executive, State Legislature, Legislative Power of Governor, High Courts, Subordinate Courts)

Part VII (Article 238) — Omitted

Part VIII
(Article 239 - 242)
The Union Territories

Part IX
(Article 243 - 243-O)
The Panchayats

Part IX-A
(Article 243-P - 243-ZG)
The Municipalities

Part IX-B
(Article 243-ZH - 243-ZT)
The Co-operative Societies

Part X
(Article 244 - 244-A)
The Scheduled and Tribal Areas

Part XI
(Article 245 - 263)
Relations between the Union and the States (Legislative and Administrative)

Part XII
(Article 284 - 300-A)
Finance, Property, Contracts and Suits

Part XIII
(Article 301 - 307)
Trada, Commerce and Intercourse within the Territory of India

Part XIV
(Article 308 - 323)
Services under the Union and the States

Part XIV-A
(Article 323-A - 323-B)
Tribunals

Part XV
(Article 324 - 329-A)
Elections

Part XVI
(Article 330 - 342-A)
Special Provisions Relating - Certain Classes (SCs, STs, Backward Classes)

Part XVII
(Article 343 - 351)
Official Language

Part XVIII
(Article 352 - 360)
Emergency Provisions

Part XIX
(Article 361 - 367)
Miscellaneous

Part XX
(Article 368)
Amendment of the Constitution

Part XXI
(Article 369 - 392)
Temporary, Transitional and Special Provisions

Part XXII
(Article 393 - 395)
Short title, Commencement, Authoritative Text in Hindi language, Repeals

Vipul Sir-Polity

Inspired by the Government of India Act of 1935.

SCHEDULES OF INDIAN CONSTITUTION

Originally the constitution contained 8 schedules, 4 schedules were added subsequently

FIRST

ARTICLES: 1 AND 4

Names of States and Union Territories with their territorial extent

SECOND

ARTICLES: 59, 65, 75, 97, 125, 148, 158, 164, 166 & 221

Provisions for emoluments, allowances, and privileges of:

- President and Governors
- Speaker & Deputy Speaker (LS & State Assembiles)
- Chairman & Deputy Chairman (RS & Legisiative Councils)
- Judges (SC & HCs)
- CAG

THIRD

ARTICLES: 75, 99, 124, 148, 164, 188 AND 219

Form of Dath for office, Secrecy and Affrimation of:

- Union and State Ministers
- Election Candidates
- MPs and MLAs
- Judges (SC & HCs)
- Comptroller and Auditor of India (CAG)

FOURTH

ARTICLES: 4 AND 80

Allocation of seats in Rajya Sabha to states & UTs

FIFTH

ARTICLE: 244

Administration & control of scheduled areas and scheduled tribes.

SIXTH

ARTICLES: 244 AND 275

Administration of tribal areas in the states of Assam, Meghalaga, Tripura and Mizoram.

SEVENTH

ARTICLE 246

Division of powers between Union and States in term of:

List I (Union)	List II (State)	List III (Concurrent)
100 subjects	61 subjects	52 subjects

EIGHTH

ARTICLES: 344 AND 351

Languages recognised by the Constitution (Originally 14, currently 22)

NINTH

(1st AMENDMENT ACT, 1951)

ARTICLE: 31B

Acts and regulations for land reforms, zamindari abolition, and other matters by state legislatures and Parliament.

TENTH

(52nd AMENDMENT ACT, 1985)

ARTICLES: 102 AND 191

Provisions for disqualification of MPs and MLAs on grounds of defection

ELEVENTH

(73rd AMENDMENT ACT, 1992)

ARTICLE: 243G

Specifies the powers, authority & responsibilities of Panchayats

TWELFTH

(74th AMENDMENT ACT, 1992)

ARTICLE: 243W

Specifies the powers, authority & responsibilities of Municipalities

VIPUL SIR - POLITY

defection.
Panchayats.
Municipalities.